



OFFICE OF THE POLICE COMMISSIONER

ONE POLICE PLAZA • ROOM 1400

November 12, 2010

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Thomas Hopper**
Tax Registry No. 932802
Fleet Services Division
Disciplinary Case No. 85264/09

The above named member of the service appeared before Deputy Commissioner Martin G. Karopkin on May 17, 2010, and was charged with the following:

DISCIPLINARY CASE NO. 85264/09

1. Said Police Officer Thomas Hopper, assigned to Patrol Borough Queens South Task Force, while on-duty, on or about April 28, 2009, inside of the Queens South Task Force building, in Queens County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer did display and point his firearm at another member of the service during a physical dispute.

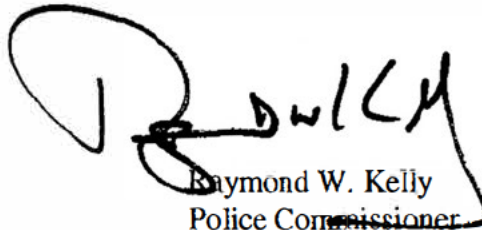
PG 203-10, Page 1, Paragraph 5

GENERAL REGULATIONS

In a Memorandum dated July 27, 2010, Deputy Commissioner Karopkin found Respondent Hopper guilty of the sole Specification. Having read the Memorandum and analyzed the entire facts and circumstances of this matter, I approve the finding, but disapprove the recommended penalty of summary dismissal.

It is clear that Respondent Hopper's conduct was outrageous and such will not ordinarily be tolerated. However, based on the facts and testimonial evidence presented here, taken concomitantly with his otherwise satisfactory service and performance history, an alternative penalty is to be imposed.

Therefore, Respondent Hopper is to be suspended without pay for 30 days and is to be placed on a One-Year Dismissal Probation period. Further, Respondent Hopper is to forfeit the 30 Suspension days without pay previously served, and is to forfeit all time/benefits while on suspension with pay status since July 8, 2010.


Raymond W. Kelly
Police Commissioner



OFFICE OF THE POLICE COMMISSIONER

ONE POLICE PLAZA • ROOM 1400

November 12, 2010

Memorandum for: First Deputy Commissioner
Attention: Chief of Personnel

**Subject: ADMINISTRATIVE TRANSFER OF A UNIFORMED MEMBER
OF THE SERVICE**

1. **P.O. Thomas Hopper, Tax # 932802**, was recently the subject of Disciplinary Case No. 85264/09.
2. Separate and apart from the disciplinary process, the Police Commissioner also directs that P.O. Hopper be immediately transferred to a Patrol Services Bureau Precinct enforcement command located outside the geographic confines of Queens, subject to the exigencies of the Department.
3. Further, P.O. Hopper will not be the subject of any future transfer without the explicit approval of the Police Commissioner.
4. Forwarded for necessary attention.

BY DIRECTION OF THE POLICE COMMISSIONER

Michael E. Shea
Assistant Chief
Commanding Officer
Police Commissioner's Office



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :

- against - :

FINAL

Police Officer Thomas J. Hopper :

ORDER

Tax Registry No. 932802 :

OF

Fleet Services Division :

DISMISSAL
-----X

Police Officer Thomas Hopper, Tax Registry No. 932802, Shield No. 31218, Social Security No. ending [REDACTED] having been served with written notice, has been tried on written Charges and Specifications numbered Case #85264/09, as set forth on form P.D. 468-121, dated April 29, 2009, and after a review of the entire record, has been found Guilty as Charged.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Thomas Hopper from the Police Service of the City of New York.

RAYMOND W. KELLY
POLICE COMMISSIONER

EFFECTIVE:

COURTESY • PROFESSIONALISM • RESPECT



POLICE DEPARTMENT

July 27, 2010

-----X
In the Matter of the Charges and Specifications : Case No. 85264/09
:
- against - :
:
Police Officer Thomas Hopper :
:
Tax Registry No. 932802 :
:
Fleet Services Division :
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Martin G. Karopkin
Deputy Commissioner - Trials

A P P E A R A N C E:

For the Department: Beth Douglas, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent: Mitchell Shapiro, Esq.
135 West Main Street
Smithtown, New York

To:

HONORABLE RAYMOND W. KELLY
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

COURTESY • PROFESSIONALISM • RESPECT

The above-named member of the Department appeared before me on May 17, 2010 and June 10, 2010, charged with the following:

1. Said Police Officer Thomas Hopper, assigned to Patrol Borough Queens South Task Force, while on-duty, on or about April 28, 2009, inside of the Queens South Task Force building, in Queens County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer did display and point his firearm at another member of the service during a physical dispute.

P.G. 203-10, Page 1, Paragraph 5 GENERAL REGULATIONS

The Department was represented by Beth Douglas, Esq., Department Advocate's Office, and the Respondent was represented by Mitchell Shapiro, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty.

PRE-TRIAL MOTION FOR DISCOVERY

The Respondent moved for discovery of certain personnel records prior to the trial of this matter. The written decision of the Court in that matter is incorporated by reference into this decision and a copy is attached hereto.

SUMMARY OF EVIDENCE PRESENTEDThe Department's Case

The Department called Police Officers Joseph Giordano and Charles Cerami, Sergeants Anthony Bianco and Edward Rummel as witnesses.

Police Officer Joseph Giordano

Giordano testified that he has been a member of the Department for over 16 years. He stated that his current command is Queens South Task Force, which is where he has been assigned to for the past four to five years. Prior to Queens South Task Force, Giordano was assigned to the 107 Precinct where he did midnight patrols and was also part of the Burglary and the Grand Larceny Auto Units.

Giordano testified that he was working on April 28, 2009, and he was assigned to a "12 to 8" tour as a sergeant's operator. Giordano testified that Sergeant Bianco was the patrol sergeant that he was working with on that date. Furthermore, Giordano said that Officer Cerami was also assigned to them. Giordano testified that they were assigned to a Radio Motor Patrol ("RMP"). Giordano stated that at 0500 hours on April 28, 2009, he responded to the precinct to drop Cerami off to relieve the telephone switchboard ("TS") operator for meal. Giordano stated that the Respondent was assigned to the TS on that date.

Giordano testified that he entered the command behind Bianco; Cerami was following Giordano. Giordano stated that he did not hear the Respondent have a conversation with anyone else when he first entered command. Giordano stated that while he was not too sure, he thought that Bianco went to the locker room. Giordano said

that when he entered, the Respondent was walking away from the TS, and so he explained to the Respondent that Cerami was to be his relief, not he. He testified that the Respondent said to him in an agitated tone, "I don't know what the fuck you're talking about, I was told to go to meal, go fuck yourself." Giordano testified that Cerami then walked into the precinct and asked Giordano for the RMP keys, which he (Giordano) then threw to Cerami. Cerami went back outside because he said he forgot something in the RMP. Giordano testified that after Cerami left, he was alone with the Respondent. He stated that he was not aware of whether anyone else was in the area at that time.

Giordano stated that he then turned to the Respondent as he was walking down the hallway and said, "I can see this is going to be a problem." Giordano stated that the Respondent responded by coming down the hallway after him. He said that the Respondent was 20 to 30 feet away from him at this point. The Respondent then got "inches away" from Giordano's face while yelling, "Get the fuck away from me, get the fuck away from me!" Giordano stated that he replied by explaining that the Respondent should go his way, and that Giordano will go his way and that neither has to talk to the other.

Giordano stated that the Respondent then took a step away and pulled his gun from his holster and pointed it at Giordano's face. Giordano testified that the gun was approximately 12 inches from his face. Giordano said that he then told the Respondent to holster his weapon and asked him why he was pulling a gun on a cop. Giordano said that the Respondent did not respond to him, but kept yelling, "Get the fuck away from me!" Giordano said that he told the Respondent multiple times to "put that fucking gun down" and took a step forward with the last command, whereupon the Respondent put the gun

on the ground. He testified that 10 to 15 seconds elapsed from the time the gun was pointed at him to when the gun was put on the ground.

Giordano stated that the Respondent then took a step back, but then crouched down to go for the gun again. Giordano said that he pushed the Respondent back and kicked the firearm down the hallway in between the sergeants' locker room and the lounge. The gun was approximately 20 feet away from them at this point. He stated that the Respondent was not able to retrieve the gun at this point. Giordano said that he then threw the Respondent down on the ground to restrain him. He testified that while he was restraining the Respondent, he looked to the left and saw Bianco pick up the firearm off the floor whereupon he let the Respondent go.

Giordano said that Cerami was also present and then Sergeant Rummel was there. Cerami, he said, came from around the sergeants' locker room area. Bianco then asked what happened and Giordano told him that the Respondent had just point his gun at him. Giordano testified that he could not remember if anyone present questioned the Respondent. Giordano stated that he sustained injuries to his neck, lower back, and left shoulder as a result of the incident. He underwent surgery on his left shoulder to repair three tears.

Giordano stated that several months prior to April 28, 2009, he had one incident with the Respondent. Giordano said that incident involved Giordano explaining why a sergeant was mad at him (the Respondent) for that day. Giordano said that he told the Respondent that the sergeant was mad because the Respondent came in too early to get three summonses for traffic court. Giordano said that this was the only verbal dispute that he had with the Respondent up to the incident and there were never any physical

disputes at any point. Giordano said that he did not seek to criminally prosecute the Respondent for the April 28, 2009 incident. He explained that he was not “going to hurt another cop like that.” Giordano stated that he was asked by investigators whether he wanted to criminally prosecute, but he said no, and that punishment consisting of the Respondent losing his job would be enough.

During cross-examination, Giordano denied that he did not particularly like the Respondent, or that he thought the Respondent was “a little brown nose” with his “yes sir, no sir.” He denied that he had indicated that the Respondent saw the Task Force as a stepping stone for bigger and better things. Giordano stated that he was six feet tall and weight approximately 200 pounds. He acknowledged that on the day of the incident he was in full street gear: vest and gun belt. He agreed that this was another 10 to 15 pounds. Giordano said that he was not too sure if the Respondent had on a vest, but he was in uniform and did not have a gun belt. Giordano said that he came back to the precinct at 0500 hours. He was not sure if the “boss” told the Respondent to go to meal because he never heard him. Giordano acknowledged that the Respondent stood up and walked away because the Respondent thought he was his relief. He acknowledged that he told the Respondent that he was not his relief. Giordano said that he had a conversation with the Respondent in the center of the vestibule and then the Respondent turned and walked down the hall 30 feet. Giordano acknowledged that he had some further conversation with the Respondent whereupon the Respondent turned and came back 30 feet towards him. Giordano said that the Respondent was shouting at him, but he was not shouting back at the Respondent. He acknowledged that the Respondent then pulled a gun. Giordano agreed that after some “back and forth” between the two, the

Respondent put down the gun. He acknowledged that he then grabbed the Respondent and put him down.

Giordano disputed the notion that he picked up the Respondent and threw him down the hallway three times. He denied that they were in front of the sergeants' locker room. Giordano denied that the Respondent said, "Cut it out Joe, we are going to get suspended." He disputed the idea that he laughed at the Respondent and said, "What the fuck are you going to do about it?" Giordano disputed the assertion that he went at the Respondent again and that was when the Respondent unholstered his weapon. Giordano acknowledged that he kicked the gun 20 feet down the hallway, but said he was not fighting with the Respondent at the time. Giordano acknowledged that the Respondent, who was five feet and 135 pounds, came 30 feet down the hallway to get up in the face of a fully dressed street cop who was twice his size to tell him to get away from him. Giordano acknowledged that he had a lawsuit against the city.

During redirect examination, Giordano stated that the lawsuit against the city was for lost wages. Upon questioning by the Court, Giordano stated that the Respondent was removed to another office further down the hallway and he was removed in the opposite direction. Giordano testified that before the other officers intervened, the Respondent ended up halfway between the sergeants' locker room and the entrance to the TS, halfway down the hallway. Giordano said that this was approximately 20 to 30 feet into the hallway from where the confrontation originally started. Giordano stated that he was in the same location at the point before the other officers intervened.

Police Officer Charles Cerami

Cerami testified that he has been a member of the Department for four years and ten months. His current command is Queens South Task Force, which is where he has been assigned for almost four years. Cerami testified that he was working on April 28, 2009 on a "12 by 8" tour to patrol with Giordano and Bianco in RMP 880. Cerami stated that he was the recorder. Cerami said that the Respondent was assigned as the TS operator on that date.

While Cerami was in the RMP with Bianco and Giordano, there was a conversation regarding meal relief for the TS operator. Cerami explained that Bianco informed him that when they went in for meal, he was the meal relief for the TS. He said that at 0500 hours, they got out of the RMP and he filled out the mileage log for the RMP and then proceeded to go into the building with Giordano and Bianco. Cerami testified that Bianco walked in first followed by Giordano and then himself.

Cerami said that when he entered the building of Queens South Task Force he heard Giordano ask the Respondent where he was going. The Respondent said he was going to meal. Cerami then heard Giordano say, "I am not your meal relief." Cerami testified that at that time he remembered he left the lights on in the RMP and tried to get the keys from Giordano so that he could go outside and turn them off. Cerami stated that he did not hear any statements between Bianco and the Respondent. Cerami said he left the building for three minutes before returning.

Upon returning, he noticed that there was nobody at the desk. He testified that he heard yelling and as he walked, he saw further down the hallway, Giordano on top of the Respondent trying to restrain his hands. Cerami said he did not see any other member of

service ("MOS") or any other personnel when he saw Giordano on top of the Respondent. Cerami testified that as he proceeded down the hallway, he noticed a firearm on the floor in front of the supervisors' locker room. Cerami said that at that time he went over to grab Giordano, but then thought that he needed to get a supervisor so he went towards the supervisors' locker room. He testified that he then saw the door of the locker room open and Rummel and Bianco come out. Cerami stated that when he saw them he yelled, "Sarge!" He then turned around and went back to Giordano and the Respondent, grabbing Giordano and picking him up.

Cerami stated that he went back because he wanted to separate the two officers. Cerami said that he put his body in-between Giordano and the Respondent and walked Giordano back towards the desk. Cerami testified that he did not recall where everyone was standing because he had his back to the Respondent and everyone else was behind him since he was walking Giordano toward the TS. Cerami stated that Giordano said, "He pulled his firearm. I can't believe he pulled his fucking firearm." Cerami said that he did not hear the Respondent make any statements. Cerami said that Bianco then called the duty captain. Cerami did not know who retrieved the firearm on the ground, but he did see Bianco at the desk with it in his hands.

Cerami testified that he sustained a neck strain injury as a result of the incident. He explained that it was probably from trying to pick up Giordano. Cerami said he felt a little twinge just as he picked Giordano up, but did not think much about it at the time. Cerami said that he was not physically involved in the incident other than lifting Giordano off of the Respondent. Cerami stated that prior to April 28, 2009 he was not involved in any other altercation of any sort with the Respondent. Cerami stated that

prior to April 28, 2009, he did have “verbal disputes” with the Respondent about who should be written a summons. Cerami explained that the “discussions” were learning experiences from a senior officer (the Respondent) where both could see each other’s arguments.

During cross-examination, Cerami agreed that his “verbal disputes” with the Respondent were more discussions of procedures than disputes. Cerami said that he did not work often with the Respondent; he said once a week, sometimes twice a week depending on personnel. Cerami stated that he never saw the Respondent act inappropriately, show bad manners to anyone, nor unholster his weapon for no reason. Cerami stated that the Respondent has not tried to “throw [him] under the bus.”

Cerami acknowledged that on the date of the incident, he arrived on the scene when both officers were on the ground. He stated that he saw them between where the copier and the file cabinet in the hallway were, four or five feet north of the Evidence Collection Team (“ECT”) office and north of the sergeants’ locker room. Cerami stated that when he saw the officers they were 12 to 15 feet from the vestibule area. Cerami said that the length of half the hallway would be 30 feet. Cerami acknowledged that he did not know what happened prior to his arrival on the scene.

Upon questioning by the Court, Cerami said that the conversation between the Respondent and Giordano was Giordano asking the Respondent where he was going since Giordano was not his meal relief, and then the Respondent replying that he was going to meal. Cerami said he did not hear any further part of the conversation because he left to go back to the RMP. Cerami declared that he did not hear any part of the conversation beyond that. Cerami stated that the Respondent’s tone sounded agitated.

Cerami stated that Giordano could also have been agitated, but did not think so. On recross-examination, Cerami said that there was no cursing during the part of the conversation he heard.

Sergeant Anthony Bianco

Bianco testified that he has been with the Department for approximately 21 years, and he was promoted to the rank of sergeant on October 30, 1998. Bianco is currently assigned to Queens South Task Force and has been a supervisor there for approximately four and a half years. Prior to that, Bianco was a supervisor at Queens South Investigations and the 113 Precinct.

Bianco testified that he was working on April 28, 2009 as a supervisor for the Task Force on the midnight shift. He testified that on that date, he conducted patrol in an RMP with Giordano and Cerami. Bianco stated that on that date he assigned the Respondent as the TS operator. Bianco testified that he and the officers with him came into the building "approximately five to five in the morning" to relieve the Respondent for meal.

Bianco testified that while inside the RMP, he assigned Cerami to be the relief. Bianco stated that he entered the building first followed by Giordano and then Cerami. Bianco testified that when he walked in, he said to the Respondent, "Tom, go to meal." Bianco said that he then walked down to the locker room, which was 50 feet down the hallway. Bianco testified that when he went into the locker room, he went to the bathroom located inside the locker room.

Bianco said that as he came out of the bathroom to go into the locker room, he

heard Cerami screaming, "Sarge, Sarge!" He then opened the door to the hallway and saw a gun lying on the floor and saw the Respondent, Cerami, and Giordano standing in the corner. Bianco stated that two minutes elapsed from the time he went into the sergeants' locker room until he heard Cerami yell. Bianco testified that during the two minutes prior to hearing Cerami call for him, he did not hear any noise or commotion coming from outside the locker room.

Bianco stated that the gun he saw was on the floor, two or three feet from the doorway to the right. Bianco declared that the firearm was loaded. Bianco testified that he then asked whose gun was on the ground and Giordano replied, "It's Hopper's, he pulled it out on me." Bianco said he told Giordano to go to the desk. Bianco said that Rummel was behind him and Rummel told the Respondent to go into the ECT office. Bianco testified that he then picked up the Respondent's gun off the floor and put it in his pocket. Bianco then called the Patrol Borough Queens South wheel and asked to notify the duty captain.

Bianco reiterated that he was the supervisor for the midnight tour. He stated that other MOS were assigned to the midnight tour: Officers Minot and Cosivo (phonetic). Bianco testified that they were out on patrol when this incident occurred; they made an arrest and were at the 105 Precinct. Bianco declared that there were no other individuals in his sight at the time other than Giordano, Cerami, the Respondent, Rummel and himself. Bianco testified that he saw an injury on the Respondent which looked to be a red mark on his "lip nose area."

Bianco testified that prior to April 28, 2009, he had been the Respondent's supervisor for approximately a year. Bianco stated that during this time he felt that the

Respondent “did not really follow directions” and that if he told “[the Respondent] to do something, he kind of went around and asked other bosses, you know what, he would shop around and see if he could get the best answer.” Bianco said that he had given the Respondent two evaluations for two different years. The first evaluation was a 3 for “meets standards” and the second was a 3.5 for “above standards.”

During cross-examination, Bianco acknowledged that when he came out of the locker room, both officers were already standing up being separated by Cerami, who was in between them. Bianco stated that they were all across the hallway to the right of the sergeants’ locker room, about 20 to 25 feet away. Bianco stated that the hallway is eight to ten feet wide. Bianco acknowledged that he did not hear anything prior to being called out of the locker room. He agreed that he had no way of knowing what went on before he opened the door. Bianco acknowledged that he found the Respondent’s weapon on the ground. Bianco said that he did not ask the Respondent why he had drawn his weapon.

Bianco stated that on the night of the incident, Giordano was assigned to drive him on patrol. He could not recall if Giordano was assigned on the roll call to do so. Bianco stated that he switched his driver some times. Bianco stated that the Respondent was not his driver very often. Bianco acknowledged that he preferred Giordano.

Sergeant Edward Rummel

Rummel testified that he has been with the Department for 19 years and he was promoted to sergeant in 2001. As a supervisor, Rummel has been with the 105th Precinct, Queens South Task Force, and his current command at Queens South Auto Larceny.

Rummel explained that at Queens South Task Force he supervised the Task Force police officers and at Queens South Auto Larceny, he supervises four officers that deal strictly with stolen vehicles and people breaking into cars.

Rummel stated that he did not personally supervise the Respondent on April 28, 2009. Rummel testified that on the day of the incident he was in the locker room of the Queens South Task Force base. He heard a commotion in the hallway, but could not hear what was being said. Rummel said that Cerami then opened the door to the sergeants' locker room and said, "Sarge, come out." Bianco was by the doorway and went out. Rummel stated that he and Bianco were the only two in the locker room.

Rummel testified that he and Bianco exited the locker room and he saw Bianco reach down and pick up a firearm from the floor. Bianco stated that the firearm was three or four feet away from the locker entrance. Rummel said he saw the Respondent standing by the candy machine. Bianco asked Rummel to take the Respondent into the ECT office, which he did. Rummel stated that Bianco stayed with Cerami and Giordano in the hallway.

Rummel testified that inside the ECT office, he asked the Respondent what happened, and the Respondent replied that he "screwed up." Rummel asked him if he had any other firearms, and the Respondent said he did not. Rummel said that the Respondent had a holster on, but there was no firearm in it. Rummel testified that no statements were made to him as to whose firearm was recovered on the ground by Bianco. Rummel said he saw a scratch on the Respondent on the right side of his nose. Rummel testified that the Respondent did not state how he received the injury. Rummel could not remember if he offered to give any medical assistance to the Respondent.

Rummel testified that Bianco notified the duty captain and the patrol borough office. Rummel said he then put the Respondent in his car and transported him to the 107 Precinct, up to the Patrol Borough Queens South office. Rummel said that the Respondent made no statements while he was being transported.

During cross-examination, Rummel stated that when he came out of the sergeants' locker room, he saw the Respondent, Cerami, Bianco and Giordano standing in the hallway. Rummel acknowledged that he saw the Respondent standing in front of the candy machine. Rummel testified that the machines are 25 to 30 feet down the hall from where the TS is located. Rummel said that he did not know what went on in the hallway prior to exiting the locker room. Rummel stated that he did not ask the Respondent why he drew his weapon. Rummel acknowledged that he heard the Respondent say that he "screwed up," but did not get into how the Respondent had thought he had done so.

The Respondent's Case

The Respondent called Lieutenant Daniel Melore, Detective Christopher Panetta, Captain Alexander Laera, and Sergeant Mark Holochuck as witnesses. He also testified in his own behalf.

Lieutenant Daniel Melore

Melore testified that he has been with the Department for 26 years. He said that he was promoted to sergeant in December 1988 and then in November 1997, he became a lieutenant. Melore said that upon promotion he was assigned to the 100 Precinct in

Queens South. Melore testified that in February 1998, he became an Integrity Control Officer (“ICO”) at the 100 Precinct. Melore explained that his duties as an ICO was to oversee the integrity of the command, monitor those who go to court, manage overtime, and scrutinize lateness. Melore further added that, in layman’s terms, being an ICO was similar to being “the dean of a school.”

Melore testified that it was in his capacity as an ICO that he first came to know the Respondent because he was an ICO when the Respondent was assigned to that precinct. Melore stated that the Respondent did not have any type of reputation in the command to his knowledge. The Respondent was not known as a hot head, nor was he an officer that he had to keep an eye on. Melore testified the Respondent was no different than any of the other officers with respect to his integrity. Melore testified that he could not recall if the Respondent ever had a civilian complaint. Melore also testified that he had not had any incidents with the Respondent displaying his weapon inappropriately or for improper use of force. Melore acknowledged that the Respondent had once lost a radio at his command. Melore stated that the Respondent immediately reported the loss to his direct supervisor. Melore said that the Respondent did not try to blame someone else or make any excuses.

Detective Christopher Panetta

Panetta testified that he has been with the Department for ten years. He is currently assigned to the Brooklyn South Vice Enforcement Squad, but prior to that he was assigned to Queens South Task Force. Panetta stated that while he was at Queens South Task Force, he worked with Giordano and the Respondent. Panetta stated that the

Respondent was and is a good cop. Panetta said that he had never seen the Respondent display his weapon without cause. He said that he also had never seen the Respondent get into a verbal dispute with anyone or look to get someone angry or agitated. Panetta testified that he never heard any stories about the Respondent deciding to draw his weapon inappropriately.

Panetta said that there was an instance where the Respondent should have drawn his weapon in his opinion, but the Respondent refrained. Panetta explained that it was during a felony car stop and the vehicle was reported as stolen. The Respondent and his partner at the time, approached the vehicle and his weapon was pushed forward in his holster, but was not out. Panetta had been working with him on a “semi steady basis where [he] routinely stop[p]ed stolen vehicles.” Panetta said that he was assigned to a car on the “6 to 2” shift. Panetta said that it concerned him a little that the Respondent’s gun was not out even though he was justified to have it out.

Panetta stated the Respondent did justify why he did not take it out. Panetta stated that he had worked with Giordano once or twice. He testified that he had a chance to observe him on occasion. Panetta stated that it was approximately 60 feet from the TS to the sergeants’ locker room in the Queens South Task Force building.

During *voir dire* of Respondent Exhibit (RX) B¹ [RX B is a diagram of the Queens South Task Force precinct building with measurements of distances inside the building], Panetta stated that he did not participate in two of the measurements involved in the diagram of the Queens South Task Force building. Panetta testified that he made the 69 feet measurement from the beginning of the vestibule (by the vending machines) to the male supervisors’ locker room and the lobby measurement. Panetta stated that the

¹ RX B is reflected in the transcript as RX A upon initial receipt into evidence.

Respondent was the one who took those measurements he did not take. Panetta said that he was present during the measurements the Respondent took, but did not see the measurements.

Upon questioning by the Court, Panetta stated that the diagram correctly shows how the rooms are situated. Panetta stated that he did not make the diagram and he did not know if the diagram was to scale. Panetta stated that the 48 feet on the diagram appeared to be the measurement from the male supervisors' locker room to the unisex public bathroom. Furthermore, Panetta stated that the 18.5 feet measurement is the distance from the female supervisors' locker room to the public bathroom. Panetta added that he did not participate in these measurements. [RX B was received into evidence over the Department's objection.]

During a *voir dire* of RX C² [RX C is three photographs of the hallway inside the Queens South Task Force building], Panetta declared that he could not state whether the three photographs depicted the hallway of Queens South Task Force as it was on April 28, 2009. Panetta stated that he had been assigned to Queens South Task Force for two years; his assignment there ended August 2008. Panetta said that the last time he has been in the building was June 8, 2010. He testified that the hallway and the doorways were essentially in the very same place as they were when he had been assigned there. Panetta stated that no construction occurred in the hallway.

Panetta stated that he did not take the photographs, but was present when they were taken on June 8, 2010. Panetta testified that the photos were a fair and accurate reflection of what the hallway looked like on June 8, 2010 as well as April 28, 2009. [RX C was received into evidence over the Department's objection that the Department

² RX C is reflected in the transcript as RX B upon initial receipt into evidence.

had not seen the photographs until two minutes prior and that Panetta was not working in the command on the date of the incident.]

Upon questioning by the Court, Panetta stated that three photographs were essentially of the same area and taken from the same vantage point. Panetta testified that the photographs were taken by where "P.C." is marked on RX B and looking down the corridor towards the vending machines. Panetta stated that the Respondent asked him to come with him to take the photographs as a favor. Panetta stated that he was friendly with the Respondent outside of work.

Captain Alexander Laera

Captain Laera testified that he has been with the Department for over 21 years and he has been a captain for eight years. He is currently the Commanding Officer of the Office of Professional Development in Internal Affairs Bureau. Laera has also previously been assigned as the Executive Officer of the 106, 107, and 101 Precincts, and the Commanding Officer of the Queens South Task Force. Laera stated that he was with Queens South Task Force for five and a half years and as a result was relatively familiar with the Queens South Task Force building as well as where the incident took place.

Laera stated that he was never a detective nor had any experience with investigative work. Laera said that he was an ICO where he conducted preliminary investigative work. Furthermore, Laera stated that he conducted numerous preliminary investigations as a captain. Laera could not recall if any of those investigations involved questionable use of force by a police officer. Laera explained though, that an investigation of a use of force by a police officer involved gathering all the facts,

interviewing all available witnesses, and then coming to a preliminary decision. Laera stated that some type of report is generated.

Laera stated that he prepared and signed a suspension unusual occurrence report regarding the Respondent [RX A]. Laera testified that prior to preparing the report, he conducted official Department interviews with Bianco, Rummel, and Cerami, but he did not interview either the Respondent or Giordano. Laera explained that according to Department procedure, it was in the best interest not to interview them based on the criminal nature of the incident. Laera said that based on the three interviews, the first page of RX A indicates that the fight between the Respondent and Giordano started at the front desk. Laera testified that none of the officers interviewed actually saw any of the physical fight take place. Laera stated that RX A's statement that the verbal dispute escalated into a physical altercation was based on interviews with the three aforementioned officers. Laera explained that this entry was based on statements Bianco received from Giordano and Cerami's observation of the Respondent and Giordano on the floor.

Laera testified that based on preliminary evidence he had at the time, he did not think that the Respondent displayed his weapon in an attempt to defend himself from serious physical injury. Laera explained that this evidence came strictly from Giordano through one of the sergeants. Laera stated that the fight terminated in front of the supervisors' locker room. Laera testified that the fight began at the front desk and ended 60 feet away at the supervisors' locker room because it was a "walking dispute." Laera explained that the Respondent walked away from the desk going down the hallway in a westerly direction and Giordano said that he was not the meal relief. Laera said that the

Respondent left the desk believing he was relieved, which “was a mistake on everybody’s part, and he continued to walk.” Laera explained that through deduction, it could be concluded that “it was a walking or going incident from point A to point B.”

Laera testified that the Respondent claimed to have been in fear of his safety during the investigation. Laera stated that Rummel’s testimony indicated that he took the Respondent into the ECT office where the Respondent said in sum and substance that he (the Respondent) had “screwed up,” he had an argument with Giordano, and that the Respondent was in fear for his safety. Laera stated that he considered the testimony that the Respondent was in fear for his safety, but because he was not able to interview the Respondent he was left to go with the statements of the three witnesses. Laera said that based on the allegations, he felt that the Respondent had acted in an irrational manner. Laera said that this was not based on behavior that the Respondent had displayed to him or to another supervisor, but strictly on the allegation. Laera testified that if he had facts that the Respondent’s actions were justified based on the behavior of Giordano, he would not think that the Respondent had acted in an irrational manner.

Laera stated that the Respondent was sent in for a [REDACTED] by a Department psychologist. Laera testified that the psychologist found the Respondent fit for duty. Laera could not say how long the evaluation took it could have been a matter of hours. Laera testified that he was still at command when the Respondent returned from the evaluation. Laera stated that the evaluation occurred during the same tour, and believed the Respondent was suspended around 1700 hours. Laera stated that the incident occurred somewhere at 0500 hours.

Upon questioning by the Court, Laera explained that he thought the Respondent

had acted irrationally in that a uniformed officer in a Department facility would draw his weapon and point it in a threatening manner at another police officer.

Sergeant Mark Holochuck

RX D is an 11-page closing report summarizing the interviews that were conducted for the Respondent's case. RX D's last page is a signature document where the signature of Lieutenant Manson (Holochuck's supervisor) and Captain Olxea (Holochuck's Commanding Officer) appears. Of those individuals interviewed in RX D, Holochuck interviewed only Giordano³ and the Respondent⁴. Both interviews were conducted at Queens South Investigations.

Holochuck said that according to his interview with Giordano, the Respondent drew his weapon in the hallway. Holochuck stated that according to the interview, Giordano said the fight began by the TS area and that shortly thereafter the Respondent took a step back and drew his firearm whereupon Giordano screamed at him to put the gun down three or four times. Giordano told Holochuck that the Respondent put the gun on the floor to the right. Holochuck stated Giordano then kicked the gun, but when the Respondent took another motion towards the gun, he jumped on top of the Respondent and struggled to the ground.

Holochuck stated that according to the testimony, the gun was kicked approximately 20 feet in the vicinity of the sergeants' locker room front door. Holochuck stated Giordano's testimony was that the Respondent was initially taken down in the vicinity of the front desk. Holochuck testified that according to the Rummel's and

³ Page 7 of RX D

⁴ Page 8 of RX D

Cerami's testimony, the struggling officers were found down by the vending machines. Holochuck testified that this could be accounted for in that the struggle started by the front desk and then moved further down the hallway.

Holochuck explained that in the Respondent's interview, major parts of the testimonies were very similar, but there were differences in what Giordano allegedly did. Holochuck explained that the Respondent said Giordano had grabbed him, pulled the Respondent into his body, and then threw him back two times. The Respondent told Holochuck that he then realized that Giordano was much larger and taller than he. The Respondent also said that Giordano then followed him down the hallway.

Holochuck stated that he did conduct an investigation based on the Respondent's claim. Holochuck explained that there was a complete investigation in that every witness that was part of this incident was interviewed either at the time of the incident or brought in later to speak to Holochuck. Holochuck testified that all the interviews in RX D were conducted by either him or the team that was called out on the date of the incident.

Holochuck said that in his opinion it was tough to say which account by the officers involved in the fight better explained them being found in front of the sergeants' locker room. Holochuck explained that "[a] struggle can go for several feet. So where they ended up, where they started...but a lot of times estimates and approximations are off."

Holochuck testified that after his investigation, he put in a request to add an allegation on June 19, 2009. Holochuck said the reason for the addition was that he determined that the Respondent menaced Giordano with his firearm and harassed Giordano during the incident. Holochuck also said that he recommended either an

addition or change of charges against Giordano, but did not have the paperwork present to say what it depended on.

The Respondent

The Respondent has been with the Department for nearly seven years. The Respondent testified that he was 42 years old, married, and had two children. The Respondent stated that prior to becoming a police officer, he was in the military for eight years and received two honorable discharges. The Respondent testified that after graduating from the Police Academy, he participated in Operation Impact within Queens South. He was then transferred to the 100 Precinct, and then to Queens South Task Force. The Respondent said that he never had any use of force complaints made against him; however, he did have one civilian complaint for an abuse of authority. The Respondent explained that he was ordered to arrest a woman on her front lawn and the woman felt that the arrest was improper. The Respondent testified that the civilian complaint was unsubstantiated. The Respondent testified that when he had applied for the Nassau County Police Department, he was subjected to a psychological evaluation process where he was found fit for duty.

The Respondent testified that it was not accurate to say that his verbal dispute with Giordano turned into a physical altercation when he removed his authorized off-duty service weapon from his holster and pointed it at him. The Respondent explained that he drew his service weapon, not his off-duty weapon, and that he drew his weapon only to stop Giordano from assaulting him. The Respondent testified that Giordano “threw [him] around like a rag doll three times” upon which he drew his weapon in order “[t]o stop the

threat.”

The Respondent said that at that instant there was no other way he could have stopped the threat. He explained that he was not dressed for patrol and so did not have his mace, pepper spray, ASP baton, “street tools,” or his radio. The Respondent said that he had called for help, but that he did not scream the word “help” because that “would not be taken well.” The Respondent explained that instead, he told Giordano to get away from him, that they were both going to get suspended, and that he yelled loud enough that anyone in the building’s hallway should have heard it. The Respondent said that no one showed up to help.

The Respondent testified that he had said “I made a mistake” after the incident because he had drawn his weapon and was not prepared to discharge it. The Respondent testified that drawing his weapon “was completely justified” and it was not a mistake that he drew his weapon. The Respondent also testified that he felt he would have been “technically” justified in discharging his weapon. The Respondent explained that he was “absolutely in fear of imminent serious physical injury.”

The Respondent denied that Giordano “was just having a good time” with him. The Respondent explained that the first time Giordano threw him, it was a possibility. The second time, it was escalating and the Respondent had given a warning about being suspended. The third time Giordano threw him, it was clear to the Respondent that he did not care that he was going to get suspended. The Respondent stated that Giordano had threatened him numerous times in the past and was now going to fulfill them.

The Respondent disputed the testimony of Giordano that he was 30 feet down the hall and that he turned to come back down the hall to precipitate the incident by getting in

Giordano's face and telling him to back off. The Respondent also said that he did not take a step back and draw his weapon after coming down the hall. The Respondent also stated that the verbal altercation began at the TS, but all of it did not take place there.

The Respondent testified that on the night in question he was assigned as a TS operator at Queens South Task Force. At 0515 hours, Bianco rushed into the building, looked at him, pointed and said, "Tommy, go to meal." The Respondent testified that the reason he knew the time was that he looked at the clock on the wall and his watch when this occurred. The Respondent said that Bianco then disappeared down the hallway, presumably the bathroom. The Respondent stated his meal was scheduled for five o'clock. The Respondent testified that "this did not require much thought. A meal is a privilege on this job. So if you are 15 minutes into your meal period and your supervisor says go to meal, it means go to meal."

The Respondent testified that he then packed up his materials and rounded the TS whereupon Giordano came in saying, "Where the fuck are you going? I'm not your fucking meal relief. Get the fuck back on the TS." The Respondent said that because Giordano had more time on the job and was senior he had the privilege in the culture of the Department to be a "jackass" to him. The Respondent said that this was fine, and so he just sighed. The Respondent testified that he looked up at Giordano and said, "Joe, you are always on top of me, man. You are always fucking with me. Leave me alone. You are not my boss. You are not a sergeant." The Respondent said that he then proceeded to leave the area, but was pursued by Giordano who said, "Where the hell are you going?"

The Respondent said that in the interim between Giordano and him having this

exchange, Cerami, who was junior to all of them and was the obvious meal relief, walked in. The Respondent therefore felt that the TS was covered. The Respondent said that as he was walking to the break room Giordano continued the verbal confrontation. The Respondent said he realized that Giordano was right behind him and so he stopped to turn around and put his arms out "like Jesus Christ. What do you want?"

Giordano then reached out, grabbed him, violently pulling him and then flung him back. The Respondent testified that as he was 15 feet down the hallway, Giordano put his hands on him. The Respondent stated that he was shocked at Giordano's reach and stunned that he had put his hands on him. The Respondent testified that he said, "What the hell are you doing? Get the hell away from me." The Respondent said that Giordano advanced on him again and again jerked him in and up to fling him back again. The Respondent stated that he then said, "Asshole, we are going to get suspended." The Respondent said that this was to demonstrate that any opportunity that this was playing around was over. The Respondent also said that this was a warning and a cry for help. The Respondent testified that Giordano grabbed him and flung him backwards for a third time.

The Respondent declared that at this point, his mind was racing and he thought he had to fight Giordano. The Respondent stated that he was five feet five inches and weighed 120 pounds and Giordano was six feet "something" and "just dominated" him. The Respondent testified that thoughts were racing through his head about having to fight Giordano, such as hitting and kicking him as hard as he could. The Respondent said that because Giordano had not hit him yet, Giordano would say that he had been hit first. The Respondent also stated that he thought Giordano was going to pick him up and slam him

against the wall and that the next time he grabbed him, Giordano was going to “turn [him] 90 degrees, and bam, crack [his] head open.”

The Respondent said that he had the most intense fear that he has ever had because he did not have a way out of the incident. The Respondent declared that he thought he was going to get suspended with serious physical injuries or suspended without injuries. The Respondent said that he chose to be suspended without injuries and therefore, took a step back and drew his weapon to get Giordano to stop. The Respondent testified that when he pulled out his gun, stopping Giordano was his only objective.

The Respondent stated that Giordano stopped and then he looked at the Respondent and said, “Are you nuts? Put the gun down.” The Respondent said that Giordano continued to advance despite a loaded 9-millimeter pistol pointed at him. The Respondent said that when Giordano kept advancing he had “a very quick moral decision to make, [is he] going to put this man in the ground, and [he] chose not to.” The Respondent declared that he would be justified in shooting Giordano if he had, even though it would not have been the right thing to do.

The Respondent stated that he put the weapon down on the ground and the moment he put the gun down, Giordano grabbed him and threw him across the hallway. The Respondent testified that Giordano then “pounced” on top of him and grinded his face on the floor. The Respondent stated that either Cerami or Bianco came and pulled Giordano off of him. The Respondent said that then Bianco and Rummel separated them in front of the sergeants’ locker room directly across from the candy machines, about three feet diagonally to the southwest of the ECT office.

The Respondent said that he was sent for a [REDACTED] after the incident; the result was that he was fit for duty. The Respondent stated that no one asked him what happened that day, but he did try to volunteer his side of the story to Rummel. The Respondent explained that Rummel may have asked him what had happened, but it did not register. The Respondent said that when he calmed down, he and Rummel went down to the patrol borough office in Rummel's vehicle whereupon he started to tell the story. The Respondent said that Rummel advised that it was best not to say anything right then, and the Respondent acknowledged.

The Respondent said he was then waiting to be asked what happened. The Respondent said the first time he was asked what happened was by the "[REDACTED]" and after that, at the official Department interview a month and a half after the incident. The Respondent stated that he believed charges and specifications had already been preferred by then. The Respondent stated that he did not deny that he drew his weapon even though there were no witnesses because that sounded naïve, and he does not lie.

During cross-examination, the Respondent acknowledged that he could not deny drawing his weapon on Giordano because his actual firearm was on the ground by the sergeants' locker room. The Respondent admitted that it was his gun on the floor out of the holster when Rummel, Bianco, and Cerami were present in the command. The Respondent denied that this was also why he could not deny pulling his firearm on Giordano.

The Respondent acknowledged that Bianco entered the command and said, "Tommy, go to meal." The Respondent acknowledged that he then got up from the TS desk and started to walk away. The Respondent agreed that then Giordano confronted

him with expletives and told him to go back to the desk. The Respondent admitted that he responded back with an expletive and told Giordano that he was not his boss and that he could not tell him what to do. The Respondent stated that it did not anger him that Giordano, who was not a supervisor nor a ranking MOS, was telling him what to do. The Respondent explained that Giordano is constantly cursing at him, it was irrelevant and that Giordano had that privilege. The Respondent said that he felt it necessary to tell Giordano that he was not his boss and to leave him alone because Giordano seemed to be unaware of it.

The Respondent acknowledged that Giordano grabbed and threw him back three times before he drew his firearm on Giordano. The Respondent acknowledged that after Bianco came into command, he assumed that Bianco went to the bathroom. The Respondent stated that he was not aware that Rummel was in the command as well. The Respondent said that he had not seen Rummel at any time during his tour while he was assigned to the TS before Bianco walked in. The Respondent said that the first time Giordano grabbed him he did not call out for anybody. The Respondent said that the second and third time he did not call out for Bianco. The Respondent said that he did not need to run in any direction down the hallway because he was being thrown down the hallway. The Respondent agreed that where the TS desk is, there is an entranceway where Bianco, Giordano, and Cerami entered at some point. The Respondent said that he did not go running out that entrance because it would require him to go past Giordano, who was twice his size.

The Respondent said that he did not pull out his firearm and point it at Giordano's face. The Respondent acknowledged that he was present in the courtroom on May 17,

2010 when Giordano testified that he pointed the firearm approximately 12 inches away from his face. The Respondent said that the majority of the time, the gun was aimed [at Giordano's] center mass, chest area. The Respondent stated that it was appropriate to say he held out his firearm for approximately five to seven second. The Respondent acknowledged that he put the gun on the ground after Giordano ordered him to drop his firearm. He said that the decision to put the gun on the ground was definitely his choice because he was in control of his actions and is responsible for them.

The Respondent disputed that idea that the reason why Giordano lunged and threw him to the ground was because he had tried to retrieve the firearm that was on the ground. The Respondent did acknowledge that after he put the gun on the ground, Giordano grabbed and threw him down on the ground for the fourth time. The Respondent acknowledged that Giordano had not drawn or pointed any firearm at him during any point of the incident. The Respondent agreed that Giordano never said that he was going to kill him, shoot him, or anything of that nature.

During redirect examination, the Respondent stated that the Patrol Guide, as he knew it, did not require deadly physical force be displayed or used towards an officer prior to drawing of a weapon. The Respondent testified that from his Police Academy training, "no one can tell me when [he] can or cannot draw [his] weapon. There are strict guidelines on the discharge of the weapon." The Respondent stated that there was a belief that someone should be in fear of serious physical injury at a minimum prior to drawing there weapon. The Respondent reiterated that he was in fear of serious physical injury when he drew his weapon. The Respondent stated that Giordano was twice his mass. The Respondent testified that the last time he weighed himself, he was 122

pounds.

The Respondent stated that the reason he did not call for the sergeant when he was being attacked was because the incident happened too quickly. The Respondent said that he did shout rather loudly as a warning for Giordano to stop. The Respondent testified that he had never seen an officer get suspended, but his understanding was that if there was anything more than a “verbal yuck yuck” people would get into serious trouble. The Respondent said, “When he continued to assault me, having been threatened, warned that we were going to get suspended, if he doesn’t care if he is going to get suspended and threatened me in the past, which he has, he was going to get a real piece of me.”

Upon questioning by the Court, the Respondent said that Giordano was “an angry senior guy.” Giordano had recently come to the midnight tour and he would dismiss the Respondent with “get the fuck away from me before I kick you ass.” The Respondent said that he had prior incidents involving verbal harassment with Giordano over a period of a couple of months. The Respondent stated that none of the incidents involved physical harassment, but there were two incidents involving verbal harassment and approximately a dozen more incidents of animosity. The Respondent said that he never reported any of these incidents because he felt it would not be good for his career since Giordano was the sergeant’s driver. The Respondent reiterated that when Giordano grabbed him for the second time, he yelled “good and loud” thinking Cerami was present in the building at the TS. The Respondent stated that he told Giordano to get away from him and that they would both be suspended.

FINDINGS AND ANALYSIS

The Respondent is charged with having displayed and pointed his firearm at another officer, Giordano. There is no question that the Respondent did in fact unholster and point his firearm at Giordano. While it could be argued that this is a sufficient basis upon which to find the Respondent Guilty the Respondent has argued that his actions were justified and sanctioned by the Patrol Guide. It is therefore necessary to review the facts.

This case is what is sometimes referred to as a "one-on-one." No one was present for, or witnessed, the actual pointing of the gun other than the Respondent and Giordano, although other officers were present before and after that event.

There is no question that Giordano had been the operator of an RMP in which he, his sergeant, Bianco and Cerami had been on patrol. The Respondent had been working in the command as the telephone switchboard (TS) operator. Bianco entered the command first and told the Respondent that he could take a meal break. Bianco continued to the locker room area and the bathroom.

The Respondent left the TS and that is when a verbal dispute began between Giordano and the Respondent. Cerami, who walked in last, heard Giordano tell the Respondent not to leave his post at the TS because he, Giordano, was not his meal relief. Cerami testified that at this point he went back out to the RMP because he thought he had left the lights on. Giordano remembered giving Cerami the car keys.

At this point, just the Respondent and Giordano were in the area and this is where the stories diverge.

Giordano said that the Respondent continued down the hall. Giordano testified

that he told the Respondent, "I can see this is going to be a problem." With that, according to Giordano, the Respondent turned and said that it already was a problem.

Describing what happened next Giordano testified: "He gets in my face and I am trying to explain to him listen, you go your way I'll go my way, we don't have to talk to each other. With that he is yelling at me at the same time saying get the fuck away from me, get the fuck away from me."

Giordano testified that the Respondent was screaming at him. When asked what happened next, Giordano stated: "With that he takes a step back and points his gun at my face." Giordano testified that he had pulled the gun out of his holster and pointed it from about 12 inches away at his face.

Giordano testified that he then said, "What are you pulling a gun on a cop for" and told the Respondent to holster his weapon. Giordano said that the Respondent did not do so and continued to yell for Giordano to "get the fuck away from [him]."

Giordano said he repeatedly told the Respondent to put the gun down. He then said, "The last time he is not responding, the last time I took a step forward and I said put that fucking gun down and he put the gun down on the ground."

Giordano testified that the Respondent took a step back and then went for the gun again, crouching down to recover the gun. At that point Giordano said he pushed the Respondent back and kicked the gun down the hallway. He then grabbed the Respondent and threw him to the ground to restrain him. When he saw that Bianco had recover the gun and he let go of the Respondent.

The Respondent's version is that at 5:15 hours, fifteen minutes after he was supposed to get his meal break, Bianco rushed in, pointed to him and said, "Tommy go to

meal.” Bianco, he said, continued down the hall “presumably to the bathroom.”

The Respondent said that as he reached the front of the TS desk, Giordano came in and said, “Where the fuck are you going? I’m not your meal relief. Get the fuck back on the TS.” The Respondent testified that he replied, “Joe you are always on top of me, man. You are always fucking with me. Leave me alone. You are not my boss. You are not a sergeant.” He said he then saw Cerami, who he presumed was his relief and he proceeded to leave the area.

The Respondent testified that Giordano pursued him down the hall and asked him where he was going. At one point, the Respondent said, he turned around whereupon Giordano grabbed him and pulled him into him and then flung him backwards. The Respondent said that Giordano advanced on him and again grabbed him inward and flung him back. The Respondent testified that he then said something about them both getting suspended. He said that Giordano advanced again, grabbed him and again flung him back. The Respondent testified that at that point he stepped back and drew his weapon to get Giordano to stop. He was in fear, he said, of having his head broken against the wall.

The Respondent testified that Giordano did in fact stop and said, “Are you nuts? Put the gun down.” The Respondent said Giordano continued to advance on him even with the gun pointed at him. The Respondent said he put the gun on the ground and the moment it was on the ground Giordano grabbed him, threw him across the hallway, pounced on top of him and started to grind his face into the floor.

Thus the end of the story in both versions is essentially the same, the Respondent’s gun is on the ground and Giordano is struggling with the Respondent on the floor, when Cerami, followed by Bianco and Rummel, arrived on the scene and the

event comes to a close.

The Department has argued, essentially, that Giordano's version of events is true and that the Respondent, whose holster was empty and whose gun was found on the floor, made up his version because he could not deny pulling his gun.

Respondent's counsel has argued that Giordano's story is false because it cannot account for the position of the gun or the two parties to the fight at the end of the incident. This argument was best addressed by Holochuck who pointed out that during a dispute estimates of distance are likely to be off.

None the less the problem of who is telling the truth remains as there is no independent corroboration of either story. In this case however, it is unnecessary to try to determine which version of events is true because under either version the Respondent must be found Guilty.

Certainly under the Giordano's version of events the Respondent pulled out and pointed his weapon without any provocation. But under the Respondent's version as well there is no basis for pulling out and pointing his weapon, let alone firing it, as the Respondent claimed would have been justified.

The Respondent relies on Patrol Guide section 203-12 paragraph (a) which provides that, "Police officers shall not use deadly physical force against another person unless they have probable cause to believe they must protect themselves or another person present from imminent death or serious physical injury." This reliance is misplaced.

To begin, with there is no reason to believe that the Respondent was in danger of imminent death or serious physical injury. The Respondent is an MOS who is trained in

the art of avoiding physical confrontation. He knew that his alleged assailant was an MOS with a decade-and-a-half on the force who was unlikely to engage in conduct that might cost him his job, his pension and possibly put him in jail. He was in a police facility in which other officers come and go. He specifically knew there were other officers in his immediate vicinity. Bianco was nearby in the bathroom of the supervisors' locker room and he also knew Cerami was somewhere in the vicinity. While the Respondent claims not to have known it, Rummel was also nearby in the supervisor's locker room. The Respondent therefore also knew that the amount of time that he and Giordano would be alone was minimal. The Respondent does not claim that he was in fear of death but he does claim that he was in fear of imminent serious physical injury. Objectively there was no basis for him to reasonably have believed that he was in imminent danger of death or serious physical injury.

The Respondent emphasized his small stature compared to that of Giordano. Even when one considers that difference in size there is still no basis to find that the Respondent, subjectively, could have reasonably believed he was in imminent danger of serious physical injury.

Further evidence that the Respondent was not in fear of imminent death or serious physical injury is manifested in his actions. When Giordano ordered him to put the gun down he did so even though Giordano was advancing on him. If he was truly in fear for his safety he would not have put the gun down.

Moreover the Respondent did not suffer physical injury let alone serious physical injury from the incident. The only injury the Respondent is reported to have suffered was

a scratch on his nose which clearly occurred when he and Giordano were fighting on the floor after the gun had been put down.

There are other problems with the defense put forth by the Respondent. For one thing, the Respondent has ignored other parts of that same Patrol Guide section. The introduction to section 203-12 reads as follows:

The New York City Police Department recognizes the value of all human life and is committed to respecting the dignity of every individual. The primary duty of all members of the service is to preserve human life. The most serious act in which a police officer can engage is the use of deadly force. The power to carry and use firearms in the course of public service is an awesome responsibility. Respect for human life requires that, in all cases, firearms be used *as a last resort*, and then only to protect life. Uniformed members of the service should use only the minimal amount of force necessary to protect human life, (emphasis added).

The Respondent made absolutely no showing that the use of his firearm was a “last resort.”

The Respondent went to great lengths to show how large the space where this confrontation occurred is. He even put in evidence a diagram (RX B) showing that the hallway is almost 70 feet long and over ten feet wide. While the Respondent explained that he could not go out the front door because he would have to get past Giordano, he never credibly explained why he could not have retreated from Giordano in the other direction.

Additionally, he was outside the male supervisors’ locker room, where he knew Bianco had gone and where Rummel was as well. He never adequately explained why he

could not have retreated into that locker room which is at the opposite end of the hallway from the front door and would not have required him to pass Giordano.

The Respondent never called out for help even though help was nearby. He didn't call out for their supervisor, Bianco, he merely, he says, "screamed" out something about them getting suspended. The Respondent explained this saying, "See you have to understand the environment I work in." Apparently neither of the two sergeants in the adjoining locker room heard the Respondent's "scream" or perceived it as a call for help. Both Bianco and Rummel responded when Cerami came into the locker room which was after the gun incident.

All of this means that the Respondent did not take appropriate action to avoid the use or threatened use of deadly physical force.

On this point we get to the most chilling thing the Respondent said. He testified that he believed he would have been justified if he had fired the weapon. Indeed the Respondent testified that the one mistake he made was drawing his weapon and "not being one hundred percent prepared to discharge it."

Explaining why did not fire the weapon, the Respondent said, "you can be justified in doing something and still not be the right thing to do." In this case, even if one were to accept the facts as the Respondent presented them, it was not the right thing to do because it was not justified. There is evidence that the Respondent knew this. Shortly after the incident Rummel took the Respondent to the ECT office. Rummel testified that he asked the Respondent what happened and that the Respondent answered that he had "screwed up." Clearly the Respondent did.

The Respondent is found Guilty of the single specification in this case.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined, see *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on July 12, 2003. Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

At the outset this Court stated that it was unnecessary to determine which version of events was true. The same is true as to penalty, either version leads to the same result.

The facts alleged by Giordano establish that the Respondent in reaction to mere words unholstered his firearm and pointed it at another member of the service. This is unacceptable behavior for a member of the service entrusted with a weapon. An officer who has engaged in this behavior poses a significant safety risk to other members of the service and to the public.

The same is true under the facts put forth by the Respondent. Indeed some of things the Respondent said make even clearer the need to separate him from his position with the Department.

During his testimony the Respondent complained bitterly about the culture of the police department. To the extent that there is such a thing, it is shaped every day by the conduct of its members.

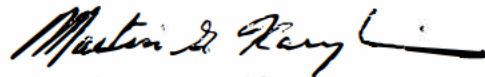
The Respondent claimed that prior to the incident he had problems with Giordano alleging that he threatened him "numerous times" but made no complaint because he believed it would have been bad for his career. The Respondent did not retreat during the incident with Giordano. He did not call out for help or at a minimum did not do so

effectively, because of the "environment" he worked in. If these arguments were to be considered in any way acceptable they too would shape the police department in a very dangerous way.

The culture of police department as the Respondent would have it is one in which it is better to pull out a gun and point it rather than call for help. But it would not stop there. The Respondent stated that his only mistake was pulling out the weapon when he did not intend to use it. The Respondent testified that he felt he would have been justified in shooting Giordano and thereby possibly killing him. This is, of course, utterly unacceptable. The Respondent obviously does not understand and appreciate the full measure of responsibility involved in carrying a weapon. He also does not understand his responsibilities as a member of the service.

Based on the serious nature of the offense that the Respondent has been found Guilty of, it is the recommendation of this Court that the Respondent be DISMISSED from the New York City Police Department.

Respectfully submitted,



Martin G. Karopkin
Deputy Commissioner Trials

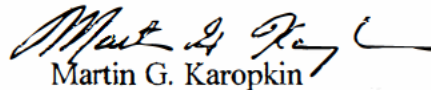


POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER THOMAS HOPPER
TAX REGISTRY NO. 932802
DISCIPLINARY CASE NO. 85264/09

In 2008 and 2009, the Respondent received an overall rating of 3.5 "Highly Competent/Competent" on his annual performance evaluation. He was rated 3.0 "Competent" in 2007. He has received two medals for Excellent Police Duty. In his seven years of service, [REDACTED]. Th

For your consideration.



Martin G. Karopkin
Deputy Commissioner – Trials